SECOND AMENDMENT AND AGREEMENT

THIS SECOND AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 6 July 2020, 2020 (the "**Second Amendment Effective Date**"), by and among CrossBoundary Energy Ghana, a company limited by shares, registered in Ghana bearing Registration Number CS137952018 and having its registered address at No. 31 Ringway Estates, Asafoanye O. Broni, Accra, Accra Metropolitan, P.O. Box MN 595, Ghana ("**CBE Ghana**") and Kasapreko Company Limited, a company limited by shares, registered in Ghana bearing Registration Number C-31,575 and having its registered address at DTD #64 Off Spintex Road, Baatsonaa, Accra, Ghana ("**Customer**"), each a "**Party**" and together, the "**Parties**."

RECITALS

A. NVI Energy (Mauritius) Ltd (Ghana) ("**SolarAfrica**") and Customer entered into a Solar Services Agreement (as amended, the "**SSA**") dated on or about December 2, 2016 in connection with the design, construction and operation of a photovoltaic electricity generation system ("**Facility**") for the benefit of the Customer.

B. SolarAfrica and Customer amended the SSA by mutual agreement on May 31, 2017.

C. By virtue of the Completion Certificate dated October 18, 2019, signed by SolarAfrica and the Parties, and the Assignment, Assumption and Transfer Agreement effective the same date between affiliates of SolarAfrica and CBE Ghana, SolarAfrica's rights, title, and interest in the SSA and the Facility have been wholly transferred to CBE Ghana.

D. Customer confirmed and agreed in the Completion Certificate that the Facility was successfully commissioned on October 17, 2018 (the "**Phase I Commercial Operation Date**");

E. CBE Ghana and Customer amended the SSA by mutual agreement on 26 April 2019; and

F. The Parties agree to share the costs of building reinforcement works required to facilitate the installation of additional solar PV capacity and to adjust the Discounted Solar tariff accordingly.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions and Interpretation**.

   1.1. "**Reinforcement Contractor**" means the contractor selected by the Customer to carry out Structural Reinforcement Works on the existing buildings to accommodate the installation of solar PV on the roofs.

   1.2. "**Structural Reinforcement Works**" means the works as recorded in Annexure J hereto.

   1.3. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA. The rules of interpretation set forth in the SSA shall apply to this Agreement.

2. **SSA Amendments.** Unless expressly specified otherwise, the following amendments to the SSA shall be effective from the Second Amendment Effective Date:

   2.1. Financing of Reinforcement Works. The Customer's existing buildings require structural reinforcement to accommodate the installation of solar PV on the roofs. The parties herby agree to carry out the reinforcement works in accordance with the terms set out in Annexure J.

   2.2. Revised Fixed Solar Discount. CBE Ghana has agreed to finance Customer's portion of the cost for the reinforcement works by adjusting the *Fixed Solar Discount*. The value of the *Fixed Solar Discount* set forth in Part I of the SSA is hereby amended from 19.5% and restated as 19.2%. The *Current Grid Tariff (Year-1)* and *Discounted Solar Tariff (Year-1)* set forth in Part I of the SSA along with their corresponding values are hereby deleted in their entirety.

   2.3. Liability for Reinforcement Works. Customer indemnifies CBE Ghana against any claim of whatsoever nature brought in respect of the Structural Reinforcement Works.

   2.4. Annexures: The following annexure is affixed to this Agreement and is agreed by the Parties effective as from the Second Amendment Effective Date.

- ANNEXURE J: TERMS FOR FINACNING OF REINFORCEMENT WORKS

3. **No Defaults.** No Party is in default under the SSA and, to the best of each Party's knowledge, no facts or circumstances exist which, with the passage of time or the giving of notice or both, would constitute a default or breach by any Party under the SSA. As of the Second Amendment Effective Date, except for any amounts accrued for Energy Output delivered or available to be delivered to Customer since the Phase I Commercial Operation Date and not yet paid, neither Party owes any amount to the other under the SSA, and each Party waives any claims it may have related to Energy Output or costs incurred by Customer prior to the Phase I Commercial Operation Date.

4. **CBE Notice Address**. All notices to Customer under this Agreement shall be sent to the address set forth in the SSA. All notices to CBE Ghana under the SSA or this Agreement shall be sent to General Counsel, CrossBoundary Energy, energynotices@crossboundary.com.

5. **No Modification to SSA**. Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

6. **Miscellaneous**. This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitutes one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of theSecond Amendment Effective Date.

KASAPREKO COMPANY LIMITED:

By:_____

Name: Richard Adjei

Title: CEO

Date: 7/2/2020

CROSSBOUNDARY ENERGY GHANA LIMITED:

By:_____

Name: Matthew Tilleard

Title: Managing Director

Date: 6 July 2020

ANNEXURE J: TERMS FOR FINACNING OF REINFORCEMENT WORKS

As part of this Second Amendment Agreement, CrossBoundary Energy has agreed to finance the building strengthening works required to be carried out on the Customer's building prior to installing the solar PV Facility.

The Customer will be responsible for engaging and contracting with the approved Reinforcement Contractor and for managing the reinforcement works required to strengthen the building adequately to allow for the installation of solar PV on the roofs. Upon completion of the reinforcement works, the Customer shall take complete ownership of the works and engage directly with the Reinforcement Contractor regarding any defects or warranty claims.

The key roles and responsibilities associated with these works are as follows:

1. CBE Ghana will facilitate the procurement process for a Reinforcement Contractor to perform the reinforcement works.
2. Customer will enter into a contract directly with the Reinforcement Contractor to perform the works based on Customer's standard contracting forms and in accordance with Customer policies and procedures. The contract between Customer and the Reinforcement Contractor will include provisions for the Reinforcement Contractor to issue invoices to CBE Ghana for payment, subject to #5 below.
3. Customer shall be responsible for the review and approval of the proposed design to ensure that the works are fit for purpose.
4. CBE Ghana will review and approve the commercial proposal to ensure that the works are within the required budget, which shall be limited to $40,000.
5. Prior to payment of an invoice by CBE Ghana, Customer will review the reinforcement works completed, and provide CBE Ghana with written approval and acceptance of that work.
6. Following receipt of written acceptance, CBE Ghana will pay the Reinforcement Contractor directly.
7. Any variation requests by the Reinforcement Contractor will require approval by both Customer and CBE Ghana.
8. Following completion of the reinforcement works, Customer will issue CBE Ghana with a full and final written acceptance of the works carried out by the Reinforcement Contractor.
9. Upon receipt of the final written acceptance from the Customer, CBE Ghana will make final payment to the Reinforcement Contractor.
10. Customer accepts liability and responsibility for the reinforcement works.

An overview of the details and cost of the works is detailed below:

KASAPREKO COMPANY LTD.
STRUCTURAL INTEGRITY ASSESSMENT
BILL FOR RECOMMENDED STRUCTURAL REINFORCEMENT

ITEM	DESCRIPTION	QTY	UNIT	RATE (GH¢)	AMOUNT (GH¢)
	(A) Materials for CSD-1 Production Hall (12-no. Trusses)				
1	120 x 120 x 8mm angle bars tying bottom chords to steel stanchions at across apex as **Collar Ties**	22	no.	670.00	14,740.00
2	50 x 50 x 3mm angle bars tying bottom chords to purlins at specified points along trusses as **Fly Braces**	112	no.	135.00	15,120.00
	(B) Materials for CSD-2 Production Hall (20-no. Trusses)				
3	50 x 50 x 3mm angle bars tying bottom chords to purlins at specified points along trusses as **Fly Braces**	96	no.	135.00	12,960.00
4	40 x 40 x 3mm SHS as **Horizontal Braces** at selected truss intersections connecting adjacent top & bottom chords	95	pcs.	160.00	15,200.00
	(C) Materials for Truck Loading Bay (9-no. Trusses)				
5	114.3mm outside diameter steel pipe, 3mm thick, tying steel stanchions to bottom chords as **Knee Braces**	13	no.	500.00	6,500.00
6	50 x 50 x 3mm angle bars tying bottom chords to purlins at specified points along trusses as **Fly Braces**	38	no.	135.00	5,130.00
	(D) Consumables & Anti-Rust Treatment				
7	Consumables—Electrodes, oxy-acetylene sets, abrasive materials (cutting/grinding discs), etc.		LS		6,820.00
8	Anti-rust treatment materials—anti-rust primer (marine), top coat (oil-paint), tinner, etc.		LS		9,950.00
	Materials Sub-Total =				**86,420.00**
	(E) Fabrication/Installation, Delivery & Admin. Costs				
9	Fabrication/Installation Costs		LS		79,938.50
10	Provision for Scaffoldings		LS		24,000.00
11	Provision for protection of on-site equipmt. & observance of safety protocols vis-à-vis working in restricted environment		LS		16,600.00
12	Handling & Delivery (transport) to & from Fabrication Yard		LS		7,500.00
13	Admin. Costs—Overheads, Preliminaries, etc.		LS		2,160.50
	Grand Total (Contract Sum) =				**216,619.00**